

9:00 AM

Line 6

26-CIV-03625 IN RE: VINTAGE EQUITY GROUP, LLC

VINTAGE EQUITY GROUP, LLC

JUAN CARLOS LOZANO

Petitioner's Petition for Approval for Transfer of Payment Rights by and Between Payee, Elisabeth Lohier, and Petitioner

TENTATIVE RULING:

For the reasons stated below, Petitioner Vintage Equity Group, LLC's ("Petitioner" or "Vintage") currently unopposed "Verified Petition for Approval for Transfer of Structured Settlement Payment Rights Pursuant to California Insurance Code § 10134 et. seq.," filed May 5, 2026, is conditionally GRANTED. (Ins. Code Sect. 10134, *et. seq.*)

The Petition is granted conditioned upon Petitioner showing compliance with the service requirements set forth in Ins. Code. §§ 10134(g) and 10139.5(f)(2), which require that Petitioner serve all relevant documents on all interested parties, including the Petition (with attached Exhibits) and notice of the Aug. 28, 2026 hearing date. The Court is unable to locate in the Court's file any proof(s) of service showing that the payee ("E.L") and/or the "Obligor" (Brighthouse Life Insurance Company) were served with either the Petition itself (including each of the attached Exhibits) or the July 8, 2026 order re-setting the hearing date for Aug. 28, 2026.

If they were served in advance of this hearing, then Vintage's counsel is to e-file and email courtesy copies of these proof(s) of service to dept20@sanmateocourt.org before this hearing.

If they were not served at all, then Vintage's counsel is to still email Dept. 20 to advise there are no proof(s) of service. In which case, the Court will retract the conditional grant, and instead continue the hearing to a future date to allow proper service. Before the next hearing date in addition to curing service, Vintage should then address the following potential issues:

None of the Exhibits to the Petition, filed May 5, 2026, is signed/executed. (See Petition, attached Exhibit A ("Structured Settlement Payment Right Purchase & Assignment Agreement"); Exhibit B ("California Disclosure Notice"); Exhibit C (Declaration ISO Request to Transfer Structured Settlement Payments); Exhibit D ("Statement of Independent Professional Advice"); Exhibit E ("Seller Dependents") and Exhibit F ("Certificate of Marital Status."))

Further, Petitioner is asking the Court to find, under Insurance Code § 10134 et. seq., that the proposed transaction is fair and reasonable and in the best interests of the Payee. However, nearly all relevant financial information has been redacted. (See Petition, Exhibits A-C.) Petitioner asks the Court to find that the transfer agreement, pursuant to which Petitioner would purchase, for \$263,431.96, the right to receive a lump sum payment of \$411,000 on July 15, 2030, is fair and reasonable. But Petitioner has redacted nearly all relevant financial details, including the discount rate being applied, and how it was calculated. The Court recognizes that E.L.'s declaration in support of the petition, but the fairness analysis is somewhat hindered by the lack of financial detail.

E.L.'s declaration also states that she executed one prior transfer, but no information is provided as to the details of that prior transfer.

Due to this procedural posture, the matter will be deemed contested with counsel to appear;
Zoom – Courtroom L.
